

equipment operator, work the job of a laborer which is against union rules and to carry more than 100 pounds walking between trenches.” (Ibid.)

In Opposition, Plaintiff argues two exceptions to the workers’ compensation exclusivity rule apply – the dual capacity exception and the fraudulent concealment exception. Plaintiff does not explain either exception or provide any legal authority in support of either exception. Even if these exceptions apply, Plaintiff has not pled in the Complaint that the exceptions apply or provided any facts to support applying the exceptions.

Defendant Pro-Craft Construction, Inc’s Demurrer is SUSTAINED as to Plaintiff’s Complaint in its entirety.

Plaintiff to file amended complaint within 15 days.

Case Management Conference continued to 10.21.26.

5.

CASE #	CASE NAME	HEARING NAME
CVPS2600939	SPRAGUE VS TILDEN-COIL CONSTRUCTORS, INC.	MOTION TO STRIKE COMPLAINT OF JERRY SPRAGUE BY PROCRAFT CONSTRUCTION, INC.

Tentative Ruling: Defendant Pro-Craft Construction, Inc’s Motion to Strike is deemed MOOT in light of the court’s ruling on Defendant’s Demurrer to Plaintiff’s Complaint.

6.

CASE #	CASE NAME	HEARING NAME
CVPS2605126	KINT VS. MID-CENTURY INSURANCE COMPANY, A SUBSIDIARY OF FARMERS INSURANCE	HEARING ON PETITION FOR COMPEL ARBITRATION

Tentative Ruling: No tentative ruling. No proof of service of petition on file. Hearing is continued to 9.29.26.